EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

DECISION

Application no. 10949/15
Krzysztof ŁABĄDŹ
against Poland

The European Court of Human Rights (First Section), sitting on 31 August 2021 as a Committee composed of:

Erik Wennerström, *President,*
Krzysztof Wojtyczek,
Ioannis Ktistakis, *judges,*

and Attila Teplán, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 23 February 2015,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicant,

Having deliberated, decides as follows:

THE FACTS

1. The applicant, Mr Krzysztof Łabądź, is a Polish national who was born in 1970 and lives in Katowice. He was represented before the Court by Mr T. Pęcherek, a lawyer practising in Katowice.

2. The Polish Government ("the Government") were represented by their Agent, Ms J. Chrzanowska, and subsequently by Mr J. Sobczak, of the Ministry of Foreign Affairs.

A. The circumstances of the case

3. The facts of the case, as submitted by the parties, may be summarised as follows.

1. Background

4. The applicant worked in a coal mine owned by the company J.S.W. S.A. He was the president of a trade union at the company. In 2009 the

management board (*Zarząd*) of the company addressed a number of issues concerning how to deal with an economic crisis in its field of economic activity. In particular, there was consideration of whether the company should be subjected to privatisation. The trade unions in operation at the company opposed that proposal. One of the trade unions decided to organise demonstrations in front of the houses of two members of the management board, including M.Ś., a deputy president of the management board.

2. Demonstrations in front of M.Ś.'s home

5. On 5, 6 and 7 May 2009 demonstrations involving approximately ten people took place in front of M.Ś.'s house. The applicant was an organiser and participated in at least one of those demonstrations on 5 May 2009.

6. The protesters stood next to the entrance gate to M.Ś.'s property and held banners reading "Stop the tacit and treacherous privatisation" ("*Stop cichej podstępnej prywatyzacji*") and "Down with Ś., the lackey" ("*Precz z pachołkiem Ś.*"). They also distributed leaflets in the form of a wanted notice with M.Ś.'s picture on it, leaflets containing an image of M.Ś. dressed as a pirate, and leaflets alleging, *inter alia*, that M.Ś. had broken the law by terminating agreements with the trade unions, and that he had taken a number of decisions which were disadvantageous for the company and its employees and aimed at lowering its value in order to privatise it. The text on the leaflets containing allegations read:

> "President Z. and his associate Ś. infringed the law by terminating all company collective bargaining agreements and agreements with the employees of J.S.W. S.A. The policy of these members of the board, a game involving currency options and dependence on one large coal consumer, led to a drastic deterioration in the company's situation, forced days off, a dozen or so reduction in wages and a collapse in the sale of coal. The flawed decisions of these gentlemen did not trigger any reaction in Warsaw. Instead of finding a way out of the crisis together with the crew, they conduct an open war against it. This is a harmful activity for the company; it reduces its value, [and] it will lead to debts and to subsequent silent privatisation for the proverbial 'one zloty'. Two of the six mines are already threatened with liquidation; if the managerial board does not change its behaviour, group lay-offs are only a matter of time. We came here to make the community in which these gentlemen live aware of the truth about their actions. They want to hide their ineptitude by fighting employees, and the costs of their wrong decisions are to be borne by the crews of the mines. We urge the gentlemen presidents to take care of what they were appointed to do – above all, sell coal at good prices and cooperate with the crew. Otherwise, they will lead to the collapse of J.S.W. S.A. and to the loss of work for thousands of people. Unless that is their aim!!!!!????" ("*Prezes Z. i jego współpracownik Ś. łamiąc prawo wypowiedzieli pracownikom J.S.W. S.A. wszystkie Zakładowe Układy Zbiorowe Pracy i porozumienia. Polityka tych członków Zarządu, gra opcjami walutowymi i uzależnienie się od jednego dużego odbiorcy węgla doprowadziła do drastycznego pogorszenia sytuacji w przedsiębiorstwie, przymusowych dni wolnych, kilkunastoprocentowego obniżenia wynagrodzeń i zapaści w sprzedaży węgla. Błędne decyzje tych panów nie wywołały żadnej reakcji w Warszawie. Zamiast szukać wspólnie z załogą dróg wyjścia z kryzysu toczy się z nią*

otwartą wojnę. Jest to dla Spółki działanie ze wszech miar szkodliwe, powoduje obniżenie jej wartości, doprowadzi do długów i późniejszej cichej prywatyzacji za przysłowiową złotówkę. Zagrożone likwidacją są już dwie z sześciu kopalni, jeżeli Zarząd nie zmieni swojego postępowania, to zwolnienia grupowe są tylko kwestią czasu. Przyjechaliśmy tutaj, aby środowisko, w którym żyją ci Panowie dowiedziało się prawdy o ich poczynaniach. Swoją nieudolność chcą ukryć poprzez walkę z pracownikami a kosztami swych błędnych decyzji chcą obarczyć załogi kopalń. Apelujemy, aby panowie prezesi zajęli się tym, do czego zostali powołani, przede wszystkim sprzedażą węgla po dobrych cenach i współpracą z załogą. Inaczej doprowadzą do upadku J.S.W. S.A. i utraty pracy przez tysiące ludzi. Chyba, że o to właśnie tym panom chodzi!!!!!?????")"

7. The demonstrations were peaceful and the police, who were present, did not intervene.

8. The applicant talked to bystanders and journalists about alleged irregularities in the management of the company. Local and national newspapers, as well as some radio stations and websites, reported on the demonstrations.

3. Criminal complaint against the demonstrators

9. Members of the management board of the company J.S.W. S.A lodged a criminal complaint against the participants in the demonstration. On 17 June 2009 an assistant district prosecutor in Cieszyn (*asesor Prokuratury Rejonowej w Cieszynie*) refused to launch criminal proceedings. She concluded that the conduct of the demonstrators could not be qualified as a criminal offence; in particular, it did not amount to criminal harassment of M.Ś. or trespassing onto his property, as the demonstrators had stayed outside M.Ś.'s property and their behaviour had in no way been threatening. She also noted that the demonstrators' conduct might be considered criminal defamation, but that offence – under Article 212 of the Polish Criminal Code – was prosecuted only on the basis of a private act of indictment lodged by the victim of an alleged offence, and not by a public prosecutor.

4. Civil proceedings against the applicant

10. M.Ś. lodged a civil action with the Gliwice Regional Court (*Sąd Okręgowy*), seeking legal protection of his personal rights. He asked that the applicant be ordered to publish a statement apologising for damaging his reputation and to pay 5,000 Polish zlotys (PLN – approximately 1,250 euros (EUR)) to a charity. He did not lodge any separate claim for compensation.

11. On 26 June 2012 the Gliwice Regional Court delivered a default judgment (*wyrok zaoczny*) (case no. II C 127/12). The domestic court allowed the claimant's action and ordered the applicant to publish the following statement in a local newspaper (*Dziennik Zachodni*) and two magazines (*Górnik* and *Tygodnik Solidarność*):

> "I, Krzysztof Łabądź, express my regret and apologise to Mr M.Ś. that through my behaviour during the demonstrations in front of Mr Ś.'s house on 5, 6 and 7 May 2009, in particular by disseminating false information about him, I damaged Mr M.Ś's reputation" ("*Ja, Krzysztof Łabądź wyrażam ubolewanie i przepraszam Pana M.Ś. za to, że swoim zachowaniem w trakcie manifestacji pod domem Pana Ś. w dniach 5, 6 I 7 maja 2009 roku w szczególności poprzez podawanie nieprawdziwych informacji na temat jego osoby, naruszyłem dobre imię Pana M.Ś.*")

The court also ordered that the applicant pay PLN 5,000 (approximately EUR 1,250) to a charity and PLN 1,210 (approximately EUR 300) in court fees.

12. The applicant lodged an interlocutory appeal against the default judgment (*sprzeciw*).

13. On 18 February 2013 the Gliwice Regional Court delivered a judgment in which it modified the wording of the statement that the applicant had been ordered to publish (case no. II C 127/12). The court ordered the applicant to publish the following statement:

> "I, Krzysztof Łabądź, express my regret and apologise to Mr M.Ś. for the infringement of his personal rights that took place on 5 May 2009 during the demonstration in front of his house" ("*Ja, Krzysztof Łabądź wyrażam ubolewanie i przepraszam Pana M.Ś. za naruszenie jego dóbr osobistych w dniu 5 maja 2009 roku w trakcie manifestacji pod jego domem*").

The court upheld the remainder of the default judgment of 26 June 2012.

14. During the proceedings the claimant argued that the demonstrations had disturbed him and his wife and had had a negative impact on his relations with his neighbours, who had asked him questions about his actions involving the company.

15. The Gliwice Regional Court found that the applicant had been one of the organisers of the demonstration which had taken place on 5 May 2009, and had been aware of the content of the placards held by its participants and the leaflets distributed by them. As one of the people responsible for order during the gathering, he could be held liable for the content of that material. The domestic court stressed that that material had contained the claimant's name and statements alleging that he had taken actions detrimental to the interests of the company and its employees, and had therefore labelled him an incompetent manager. Moreover, the claimant's depiction as a pirate had suggested that he had committed acts for which he should have been punished. The material had therefore infringed his right to protection of his name and image, especially as the applicant had not proved that M.Ś. had committed any criminal offence related to his work as a member of the management board of the company, and had not substantiated the allegations concerning mismanagement of the company. The court of first instance also found that the statements made by the applicant and the other participants in the demonstration could be viewed and heard by not only the claimant's family, but also his neighbours,

bystanders and people who had read the relevant articles in the press and listened to the relevant radio programmes.

16. Moreover, the Gliwice Regional Court noted that the demonstration in question had been held in front of M.Ś.'s property and had caused him and his family distress and encroached upon his private space. M.Ś. submitted that he had been afraid of the demonstrators, and owing to this fact he had had to enter his house through the back entrance on the terrace. He also stated that his wife had suffered anxiety that had resulted in heart problems and had had to consult a doctor. Therefore, even though the applicant and the other demonstrators had remained in front of the claimant's property, they had also infringed his right to the inviolability of his home (*mir domowy*). In the domestic court's view, this infringement was not justified by any public interest and did not constitute a legitimate form of criticism. The applicant should have opted for legal forms of protest for employees and trade unions provided for by law. The court also emphasised that although trade union members had the right to criticise decisions taken by the management of a company, that criticism should not affect the private life of members of the company's management board and their families.

17. The regional court noted that the amount the applicant was supposed to pay to a charity was lower than his monthly income.

18. On 13 August 2013 the Katowice Court of Appeal (*Sąd Apelacyjny*) dismissed the applicant's appeal and ordered him to pay an additional PLN 720 (approximately EUR 180) in court costs (case no. V ACa 281/13).

19. The second-instance court, in principle, agreed with the reasoning of the Gliwice Regional Court. It emphasised that the right to the inviolability of one's home encompassed not only the right to protection against physical intrusion, but also the right to enjoy security and peace in one's home, and held that the applicant's actions had infringed M.Ś.'s right in this regard. It held that the infringement had to be considered unlawful, especially because the demonstrations in front of the claimant's house had in no way been related to his private or family life. The court also indicated that the use of the claimant's image and name – especially in the context of suggesting that he was a criminal – had violated his legitimate expectation of privacy. The appellate court emphasised that the statements made by the protesters had been untrue and unjust, and had not been made in the context of irony or satire.

20. Moreover, the Katowice Court of Appeal confirmed the court of first instance's view that the applicant's behaviour as an individual during the demonstration was irrelevant for the assessment of his liability, as he had been an organiser of the demonstration, had been aware of the content of both the banners and the leaflets, and had been a person responsible for presenting the views of the protesters to the journalists observing and reporting on the demonstration. It also noted that the applicant – as

a representative of a labour union which was active in his workplace – had had an opportunity to voice his concerns and defend the rights of employees by other, lawful means which would not overstep the boundaries between the claimant's professional activities and private life.

21. On 29 August 2014 the Supreme Court (*Sąd Najwyższy*) refused to entertain a cassation appeal by the applicant on account of the lack of important legal issues to be considered in the case and the applicant's failure to substantiate that the cassation appeal was manifestly well founded (case no. V CSK 40/14).

B. Relevant domestic law

22. Article 23 of the Civil Code contains a non-exhaustive list of rights known as "personal rights" (*dobra osobiste*). This provision states:

> "The personal rights of an individual, such as health, liberty, reputation (*cześć*), freedom of conscience, name or pseudonym, image, secrecy of correspondence, inviolability of the home, scientific or artistic work, [and] inventions and improvements, shall be protected under civil law, regardless of the [degree of protection] laid down in other legal provisions."

23. Article 24 of the Civil Code provides for ways of redressing infringements of personal rights. Under that provision, a person faced with the threat of an infringement may demand that the prospective perpetrator refrain from the wrongful activity in question, unless it is not unlawful. Where an infringement has taken place, the person affected may, *inter alia*, request that the wrongdoer make an apology in an appropriate form, or demand satisfaction from him or her. If an infringement of personal rights causes financial loss, the person concerned may seek damages.

24. Under Article 448 of the Civil Code, a person whose personal rights have been infringed may seek compensation or ask a domestic court to award a sum of money to a charity. That provision, in its relevant part, reads:

> "The court may award a suitable sum as pecuniary compensation for non-pecuniary damage (*krzywda*) suffered by anyone whose personal rights have been infringed. Alternatively, without prejudice to the right to seek any other relief that may be necessary to remove the consequences of the infringement, the person concerned may ask the court to award a suitable sum for the benefit of a specific social interest. ..."

COMPLAINT

25. The applicant, invoking Article 6 of the Convention, complained that, by finding against him, the domestic courts had violated his right to freedom of expression and right to freedom of peaceful assembly.

THE LAW

26. The applicant complained of a violation of his right to freedom of expression and right to freedom of peaceful assembly. Therefore, his complaints fall to be examined under Articles 10 and 11 of the Convention, the relevant parts of which provide as follows.

Article 10

"1. Everyone has the right to freedom of expression. This right shall include freedom to hold opinions and to receive and impart information and ideas without interference by public authority and regardless of frontiers. ...

2. The exercise of these freedoms, since it carries with it duties and responsibilities, may be subject to such formalities, conditions, restrictions or penalties as are prescribed by law and are necessary in a democratic society, in the interests of national security, territorial integrity or public safety, for the prevention of disorder or crime, for the protection of health or morals, for the protection of the reputation or rights of others, for preventing the disclosure of information received in confidence, or for maintaining the authority and impartiality of the judiciary."

Article 11

"1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and to join trade unions for the protection of his interests.

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others. This Article shall not prevent the imposition of lawful restrictions on the exercise of these rights by members of the armed forces, of the police or of the administration of the State."

A. The parties' submissions

1. The Government

27. The Government submitted that the applicant's complaints were manifestly ill-founded.

28. With respect to the complaint under Article 10 of the Convention, they argued that the interference with the applicant's right to freedom of expression had been in accordance with the standards set out in the Court's well-established case-law. In particular, it had had a clear basis in domestic law and had been aimed at the protection of the reputation and rights of others, namely those of M.Ś. In the Government's opinion, the interference had also been proportionate, as the domestic courts had struck a proper balance between the applicant's rights protected under Article 10 and the claimant's rights protected under Article 8 of the Convention.

29. The Government indicated that the domestic courts, acting in civil proceedings, had analysed the conflict between two Convention values – freedom of expression, and the need to protect the reputation of others – and had thoroughly reviewed the evidence in the case. They submitted that the statements made by the applicant had been defamatory, devoid of any factual foundation and made in bad faith. Therefore, they had not constituted a legitimate form of criticism. In addition to that, the form in which they had been made had infringed the inviolability of M.Ś.'s home and meant that those statements had been reported by the media and noticed by his neighbours; it had also been unjustified, taking into consideration that the applicant had had at his disposal other, lawful, means of protest available to employees and trade unions. Instead, he had opted for a gratuitous personal attack on M.Ś. Moreover, the Government submitted that as a result of the demonstration and the dissemination of the untrue information by the media, M.Ś. had lost his employment.

30. The Government also noted that the sanction applied against the applicant had in no way been excessive, as he had been ordered to issue an apology and pay a sum lower than his monthly income to a charity.

31. With regard to the applicant's complaint under Article 11 of the Convention, the Government argued that there had been no interference with the applicant's right to freedom of peaceful assembly. They noted that no administrative or criminal action had been taken in order to prevent the demonstration, disturb it or sanction its participants, and that the civil proceedings against the applicant had not concerned his freedom of assembly *per se*, but the infringement of M.Ś.'s personal rights.

32. Moreover, the Government argued that even if the domestic judgments were to be construed as an *ex post facto* restriction on the exercise of the applicant's right guaranteed under Article 11 of the Convention, this restriction had been lawful, aimed at the protection of M.Ś's rights, and necessary in a democratic society. They noted in particular that the demonstration organised by the applicant had been aimed at disrupting and directly affecting M.Ś.'s personal life, and that the domestic courts had struck a fair balance between the rights of the claimant on the one hand and the applicant's freedom of assembly on the other.

2. The applicant

33. The applicant submitted that his actions had constituted legitimate criticism of his employer and that this criticism had been voiced in the public interest, as M.Ś. had been a deputy president of the management board of the company and had been elected by the company's staff to represent its interests. In addition to that, the applicant argued that the judgments of the domestic courts had adopted the principle of "collective responsibility", as they had held the applicant liable for the content of banners and leaflets which had not been held, distributed or authored by

him. He also emphasised that the demonstration in question had been held in front of the applicant's property, on a public road, and there had been no evidence that it had violated the claimant's rights.

B. The Court's assessment

1. General principles

34. The Court reiterates that the general principles regarding the right to freedom of expression as protected by Article 10 have been stated in a number of its previous judgments (see *Lombardo and Others v. Malta*, no. 7333/06, § 51-61, 24 April 2007; *Długołęcki v. Poland*, no. 23806/03, § 34-40, 24 February 2009; *Kurłowicz v. Poland*, no. 41029/06, § 37-41, 22 June 2010; *Morice v. France* [GC], no. 29369/10, § 124-127, ECHR 2015; and *Makraduli v. the former Yugoslav Republic of Macedonia*, nos. 64659/11 and 24133/13, § 62, 19 July 2018). The general principles regarding the right to freedom of assembly as guaranteed by Article 11 have been stated in particular in the judgments of *Kudrevičius and Others v. Lithuania* ([GC], no. 37553/05, § 142-146, 155-157, ECHR 2015), and *Taranenko v. Russia* (no. 19554/05, § 63-66, 15 May 2014).

2. Application of the above principles to the present case

35. It was not disputed between the parties that the domestic judgments delivered in the civil proceedings against the applicant had interfered with his right to freedom of expression guaranteed by Article 10 § 1 of the Convention. The Government questioned, however, whether the domestic judgments had constituted an interference with the applicant's right to freedom of assembly guaranteed by Article 11 § 1 of the Convention.

36. In this context, the Court reiterates that it has already established on numerous occasions that interference with the exercise of freedom of peaceful assembly does not need to amount to an outright ban, legal or *de facto*, but can consist in various other measures taken by the authorities. The term "restrictions" in Article 11 § 2 must be interpreted as including both measures taken before or during an assembly and those, such as punitive measures, taken afterwards, including penalties imposed for having organised or taken part in a rally (see *Ezelin v. France*, 26 April 1991, § 39-41, Series A no. 202; *Galstyan v. Armenia*, no. 26986/03, §§ 100-102, 15 November 2007; and *Sergey Kuznetsov v. Russia*, no. 10877/04, § 36, 23 October 2008).

37. In the present case, the applicant was ordered to pay a certain amount to a charity for not only violating the claimant's reputation by making statements about his professional activity, but also violating the inviolability of his home by organising and participating in a demonstration in front of his house. Consequently, the domestic judgments constituted an

interference which was directly related to not only the exercise of the applicant's freedom of expression guaranteed under Article 10, but also his right to freedom of peaceful assembly under Article 11 of the Convention (see also *Kemal Çetin v. Turkey*, no. 3704/13, § 26, 26 May 2020).

38. The Court notes, however, that the issues of freedom of expression and freedom of peaceful assembly are closely linked in the present case, and should be examined together (compare *Taranenko*, cited above, § 68-69).

39. It is common ground between the parties that the interference was prescribed by law, namely the relevant provisions of the Civil Code. The Court accepts that the interference pursued the legitimate aim of the protection of the reputation and rights and freedoms of others, and more particularly M.Ś's reputation and right to reputation, privacy and the inviolability of his home. The Court must therefore determine whether the interference complained of was necessary in a democratic society in order to achieve this legitimate aim within the meaning of Article 10 § 2 and Article 11 § 2 of the Convention.

40. In this context, the Court reiterates that the right to protection of reputation as well as the right to the inviolability of one's home are rights which are protected by Article 8 of the Convention as part of the right to respect for private life (see *Axel Springer AG v. Germany* [GC], no. 39954/08, § 83, 7 February 2012). Although the object of Article 8 is essentially that of protecting the individual against arbitrary interference by the public authorities, it does not merely compel the State to abstain from such interference: in addition to this primarily negative undertaking, there may be positive obligations inherent in effective respect for private or family life. These obligations may involve the adoption of measures designed to secure respect for private life even in the sphere of the relations of individuals between themselves. That also applies to the protection of a person's image against abuse by third parties (see *Von Hannover v. Germany (no. 2)* [GC], nos. 40660/08 and 60641/08, § 98, ECHR 2012, and *Bédat v. Switzerland* [GC], no. 56925/08, § 72-73, 29 March 2016).

41. The Court reiterates that in order to fulfil its positive obligation to safeguard one person's rights under Article 8, the State may have to restrict to some extent the rights secured under Article 10 and Article 11 for another person. When examining the necessity of that restriction in a democratic society, the Court may be required to verify whether the domestic authorities struck a fair balance when protecting the rights guaranteed by the Convention which may come into conflict with each other (see *Axel Springer AG*, cited above, § 84), bearing in mind that these rights deserve equal respect and that the margin of appreciation should in theory be the same in both cases (see *Von Hannover (no. 2)*, cited above, § 106).

42. In this regard, the Court notes that the domestic courts established that the applicant had been one of the organisers of the demonstration, had participated in it, and had been aware of both the place where it would be

held and the content of the banners and leaflets. Furthermore, he had been responsible for talking to the media and maintaining order during the event (see paragraphs 15 and 20 above). Consequently, he had endorsed the statements made during the demonstration and could be held liable for the content of the material displayed and distributed, and the choice of where the demonstration would be held.

43. The Court further notes that the statements made by the applicant and the other participants in the demonstration concerned issues of public interest – in particular, the economic situation and the management decisions taken within the company in which he worked. They were made in the context of the conflict between the company's management and the trade unions and were related to M.Ś.'s professional activity. Admittedly, a person who holds managerial posts and is responsible for decisions related to a company's assets and influencing the company's employees should be prepared to accept harsher criticism, particularly in the course of a public debate where matters relating to the company's interests and those of its employees are discussed (see *Kurłowicz*, cited above, § 50, and *Smolorz v. Poland*, no. 17446/07, § 38, 16 October 2012). However, as stressed by the domestic courts in their judgments, the applicant did not voice his criticism of M.Ś.'s activities in any form provided for by the domestic law on the resolution of conflicts between employers and employees (including when acting through trade unions), either in the workplace or in the vicinity of M.Ś.'s place of business. Instead, he chose to demonstrate and to distribute leaflets bearing an image of the claimant in front of the claimant's home, where M.Ś. might have relied on a "legitimate expectation" of protection of and respect for his private life (see, *mutatis mutandis*, *Von Hannover (no. 2)*, cited above, § 97).

44. Moreover, the applicant offered no factual basis for the statements of fact and opinions expressed in the leaflets distributed, in particular for the allegations that M.Ś.'s actions had been unlawful or economically unjustified. In the circumstances of the present case, the domestic courts held that the statements made during the demonstration had contained both untrue statements of fact as well as opinions for which the applicant had presented no foundation. The Court finds no reason to depart from the conclusions reached by the domestic authorities.

45. Lastly, the Court reiterates that the nature and severity of the penalty imposed are factors to be taken into account when assessing the proportionality of an interference (see, for example, *Morice*, cited above, § 127, and *Kudrevičius and Others*, cited above, § 146). In this connection, the Court notes that as a result of the civil proceedings before the domestic courts, the applicant was ordered to pay the sum of PLN 5,000 (EUR 1,250) to a charity. He was also ordered to bear the costs of the proceedings (see paragraphs 11 and 18 above). The amount of the penalty was decided in accordance with the nature of the infringement, as well as the financial

means of the applicant (see paragraph 17 above). The Court considers that the penalty imposed on the applicant cannot be considered excessive.

46. In the light of the foregoing, the Court is satisfied that the reasons advanced by the domestic courts in support of their judgments were relevant and sufficient, and that the interference was not disproportionate to the legitimate aim pursued, namely the protection of the reputation and rights and freedoms of others. Therefore, the interference with the applicant's right to freedom of expression and freedom of assembly was "necessary in a democratic society".

47. It follows that the application is manifestly ill-founded and must be declared inadmissible in accordance with Article 35 §§ 3 (a) and 4 of the Convention.

For these reasons, the Court, unanimously,

Declares the application inadmissible.

Done in English and notified in writing on 23 September 2021.

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Attila Teplán
Acting Deputy Registrar

Erik Wennerström
President